
INTERIM OPERATING & OWNERSHIP AGREEMENT

OF DRYWALL TOOLBOX LLC

A MINNESOTA LIMITED LIABILITY COMPANY

ALIGNING
PARTNERSHIP.
BUILDING
WHAT'S NEXT.

1 PURPOSE AND INTENT

The Members have jointly developed, operated, and contributed to the development of Drywall Toolbox LLC. This Interim Operating Agreement sets forth the Members' current agreed terms regarding ownership, governance, economic rights, and other key terms for the Company.

This Agreement is intended to be a legally binding interim agreement until a definitive operating agreement is prepared or reviewed by qualified legal counsel and executed by both Members.

2 COMPANY AND GOVERNING LAW

The Company is Drywall Toolbox LLC, a Minnesota limited liability company.

This Agreement shall be governed by the laws of the State of Minnesota, including the Minnesota Revised Uniform Limited Liability Company Act, Minnesota Statutes Chapter 322C.

The Company shall be member-managed unless the Members later agree otherwise in a written agreement signed by both Members.

3 COMPANY PROPERTY

All assets acquired, developed, created, purchased, configured, or maintained for the Company shall, to the extent legally owned or assignable, constitute property of Drywall Toolbox LLC. This includes, without limitation, the Company brand, domain names, websites, source code, software, databases, customer data, vendor information, financial accounts, payment processors, inventory and fulfillment systems, accounting systems, hosting, marketing materials, and all other Company business assets.

4**ACCESS AND PROTECTION**

Neither Member may, without the written consent of the other Member:

- Lock the other Member out of Company systems or accounts.
- Transfer or appropriate Company property for personal use.
- Remove, dilute, or otherwise impair the other Member's ownership rights.
- Take any action intended to exclude the other Member from the business.

5**TRANSFERS AND DILUTION**

Neither Member may sell, transfer, or otherwise encumber their ownership interest, or admit another member, without the written consent of the other Member. Neither Member may issue additional ownership interests or take any action that would dilute the other Member's agreed ownership, voting, or economic rights.

6**COMPANY FUNDS AND FINANCIAL TRANSPARENCY**

Company funds shall be kept separate from personal funds. Both Members shall have reasonable access to financial records, and no Member shall intentionally conceal material financial information. Distributions shall be made according to the Economic Percentages listed in Section 13, subject to reasonable operating reserves and applicable tax requirements.

7 CONFIDENTIALITY

Each Member shall protect the Company's confidential information and shall not use such information to compete with or harm the Company. These obligations survive a Member's departure to the extent permitted by law.

8 DEADLOCK AND DISPUTES

If the Members are unable to agree on a material matter, they shall first attempt in good faith to resolve the dispute directly. If unresolved, either Member may request confidential mediation with a mutually agreed Minnesota mediator.

9 DEFINITIVE OPERATING AGREEMENT

This Interim Agreement shall remain effective until a definitive operating agreement is executed by both Members. Upon execution, the definitive agreement shall supersede this Agreement to the extent expressly provided therein.

10 MISCELLANEOUS

GOVERNING LAW

This Agreement shall be governed by the laws of the State of Minnesota.

AMENDMENT

This Agreement may only be amended in writing and signed by both Members.

SEVERABILITY

If any provision is found unenforceable, the remaining provisions shall continue in effect.

ENTIRE AGREEMENT

This Agreement represents the complete interim understanding between the Members regarding the matters herein.

11 MEMBERSHIP AND OWNERSHIP

The Members agree that their Governance Ownership Percentages shall be:

Member	
Elliott Miller	_____ %
Ben Conklin	_____ %
Total	100%

12 VOTING AND GOVERNANCE

The Members agree that their Voting Percentages shall be:

Member	
Elliott Miller	_____ %
Ben Conklin	_____ %
Total	100%

13 ECONOMIC RIGHTS

The Members agree that their Economic Percentages shall be:

Member	
Elliott Miller	_____ %
Ben Conklin	_____ %
Total	100%

SIGNATURES

The undersigned agree to the terms of this Interim Operating & Ownership Agreement as of the Effective Date written below.

Elliott Miller

Signature

Print Name

Date

Ben Conklin

Signature

Print Name

Date

EFFECTIVE DATE

Month / Day / Year